

In the
Court of Appeals
Sixth Appellate District of Texas at Texarkana

No. 06-26-00119-CR

BILLY PAUL BOLT, Appellant

V.

THE STATE OF TEXAS, Appellee

On Appeal from the 8th District Court
Hopkins County, Texas
Trial Court No. 2329760

Before Stevens, C.J., van Cleef and Rambin, JJ.
Memorandum Opinion by Chief Justice Stevens

MEMORANDUM OPINION

Billy Paul Bolt pled true to possession of one gram or more but less than four grams of cocaine in a school zone. TEX. HEALTH & SAFETY CODE ANN. §§ 481.115(c); 481.134(b) (Supp.). Bolt, who also pled true to the State's habitual offender punishment-enhancement allegations, was given deferred adjudication community supervision for ten years as a part of his plea bargain with the State. The State later filed a motion to adjudicate Bolt's guilt alleging that Bolt violated the terms and conditions of his deferred adjudication community supervision by testing positive for cocaine on four different occasions. After Bolt pled true to the State's allegations, the trial court adjudicated his guilt and sentenced him to forty-two years' imprisonment. Bolt appeals.

Bolt's appellate counsel has filed a brief stating that she reviewed the record and found no genuinely arguable issues that could be raised on appeal. The brief sets out the procedural history of the case and summarizes the evidence elicited during the course of the trial court proceedings. Since appellate counsel has provided a professional evaluation of the record demonstrating why there are no arguable grounds to be advanced, that evaluation meets the requirements of *Anders v. California*. *Anders v. California*, 386 U.S. 738, 743–44 (1967); *In re Schulman*, 252 S.W.3d 403, 406 (Tex. Crim. App. 2008) (orig. proceeding); *Stafford v. State*, 813 S.W.2d 503, 509–10 (Tex. Crim. App. 1991); *High v. State*, 573 S.W.2d 807, 812–13 (Tex. Crim. App. [Panel Op.] 1978). Appellate counsel also filed a motion with this Court seeking to withdraw as counsel in this appeal.

On September 9, 2026, appellate counsel mailed to Bolt copies of the brief, the motion to withdraw, and a motion for pro se access to the appellate record lacking only Bolt's signature. Bolt was informed of his rights to review the record and file a pro se response. On September 10, we informed Bolt that his pro se motion for access to the appellate record was due on or before September 23. By letter dated October 7, this Court informed Bolt that the case would be set for submission on October 28. We received neither a pro se response from Bolt nor a motion requesting an extension of time in which to file such a response.

We have determined that this appeal is wholly frivolous. We have independently reviewed the entire appellate record and, like appellate counsel, have determined that no arguable issue supports an appeal. *See Bledsoe v. State*, 178 S.W.3d 824, 826–27 (Tex. Crim. App. 2005). In the *Anders* context, once we determine that the appeal is without merit, we must affirm the trial court's judgment. *Id.*

We affirm the judgment of the trial court.[1]

Scott E. Stevens
Chief Justice

Date Submitted: October 28, 2026
Date Decided: November 13, 2026

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[1]Since we agree that this case presents no reversible error, we also, in accordance with *Anders*, grant appellate counsel's request to withdraw from further representation of appellant in this case. *See Anders*, 386 U.S. at 744. No substitute counsel will be appointed. Should appellant desire to seek further review of this case by the Texas Court of Criminal Appeals, the appellant must either retain an attorney to file a petition for discretionary review or file a pro se petition for discretionary review. Any petition for discretionary review (1) must be filed within thirty days from either the date of this opinion or the date on which the last timely motion for rehearing was overruled by this Court, *see* TEX. R. APP. P. 68.2, (2) must be filed with the clerk of the Texas Court of Criminal Appeals, *see* TEX. R. APP. P. 68.3, and (3) should comply with the requirements of Rule 68.4 of the Texas Rules of Appellate Procedure, *see* TEX. R. APP. P. 68.4.